

Document
Exhibit 10.14
SIXTH

AMENDMENT

TO
THE

BANK

OF

AMERICA

DEFERRED

COMPENSATION

PLAN
(As

Amended

and

Restated

January

1,
2015)
Instrument

of

Amendment
THIS

INSTRUMENT

is

executed

by

BANK

OF

AMERICA

CORPORATION,

a

Delaware
corporation with its principal office and place of business in Charlotte, North Carolina (the
“Company”).
Statement

of
Purpose
The

Company

sponsors

The

Bank

of

America

Deferred

Compensation

Plan

(f/k/a

the

Bank of

America

401(k)

Restoration

Plan)

(the

“Plan”)

for

its

eligible

employees

and

eligible

employees of

its

affiliated

companies

that

participate

in

the

Plan.

The

provisions

of

the

Plan

are

currently

set forth in an Instrument of the

Company dated December

5, 2014, which amended and restated the Plan effective as of January 1, 2015, and subsequently amended by the First

Amendment, dated December 17, 2015, by the Second Amendment, dated December 15, 2016, by the Third Amendment,

dated

December

13,
2019,
by
the
Fourth
Amendment,
dated
December
11,
2020,
and by the Fifth Amendment, dated December 17, 2024.

In Section 4.1 of the Plan, the Company reserved the right to amend the Plan in whole or in part. By this Instrument, the Company is amending the Plan by modifying the distribution provisions to reflect certain timing nuances with respect to a specified year election.
NOW,

THEREFORE,

the
Company
hereby
amends
the
Plan
as
follows,
to
be
effective
as of January 1, 2026:

1.
Section 2.8(c) of the Plan is hereby amended by replacing the second sentence in the last paragraph of that Subsection with the following sentence:
“A

Participant who makes a specified year election under Paragraphs (ii), (iii), (v) or (vi) of

this

Subsection

must

elect

a

calendar

year

that

begins

at

least

24

months

after

the

end

of the Plan Year for which the election applies (for example, with respect to the Post-2014 Payment Election Source comprised of Class Year Deferrals for the 2026 Plan Year, the earliest calendar year a Participant can elect for a specified year distribution is 2029).”

2.
Section 2.8(k) of the Plan is hereby amended by replacing the second sentence in that Subsection with the following sentence:
“Not in limitation of the foregoing, special rules may exist for Evergreen Payment Elections that would otherwise result in a commencement of payment in a specified year that

does

not

begin

at

least

24

months

after

the end

of

the

Plan

Year with

respect

to

which such Evergreen Payment Election applies.”

1

3.

Except as expressly or by necessary implication amended hereby, the Plan shall

continue in full force and effect.

[signature

page

to

follow]

2

IN WITNESS WHEREOF

,

the

Company, on

behalf

of a

ll

its

affiliated companies that

participate in the Plan

,

has caused this Instrument to be duly

exec

ut

ed
on
the

day 17th
of
December

2025.
BANK

OF

AMERICA

CORPORATION

By:

/s/

Christopher

J.

Fabro

Christopher J. Fabro

Global

Compensation,

Benefits,

and Corporate

Travel

Executive

3